

DURABLE POWER OF ATTORNEY FOR HEALTH CARE

State of Washington

Executed under the Uniform Power of Attorney Act, chapter 11.125 RCW

ARTICLE 1. PRINCIPAL

I am the person identified below. I am at least eighteen years of age, I am of sound mind, and I am signing this document voluntarily, free of duress and undue influence. I create this Durable Power of Attorney for Health Care so that the person I name below may speak for me and make health care decisions for me.

Print my full legal name (Principal)

Date of birth

Street address

City

State

ZIP

Telephone

ARTICLE 2. APPOINTMENT OF MY AGENT (ATTORNEY-IN-FACT) FOR HEALTH CARE

I appoint the following person as my agent (also called my attorney-in-fact) to make health care decisions for me and to receive my health information, with the authority described in Article 6 below:

Agent's full name

Relationship to me

Agent's street address, city, state, ZIP

Agent's primary telephone

Alternate telephone or e-mail

ARTICLE 3. ALTERNATE AGENT

If the agent named in Article 2 is unable, unwilling, or unavailable to act, or resigns, I appoint the following person to serve as my agent in that person's place, with the same authority. Only one agent serves at a time. *(Optional — this Article may be left blank.)*

Alternate agent's full name

Relationship to me

Alternate agent's telephone

Alternate agent's address

ARTICLE 4. THIS POWER OF ATTORNEY IS DURABLE

Principal's initials: _____

This power of attorney shall not be affected by my disability or incapacity. The authority I grant to my agent shall be exercisable notwithstanding my later disability, incapacity, or uncertainty as to whether I am alive or dead, and notwithstanding any lapse of time. This document is intended to be a durable power of attorney under RCW 11.125.040.

ARTICLE 5. WHEN THIS DOCUMENT TAKES EFFECT AND HOW LONG IT LASTS

This power of attorney takes effect immediately when I sign it. It remains in effect until my death or until I revoke it, whichever occurs first. I may revoke it at any time while I have capacity, by any means showing my intent to revoke, including by a signed writing or by destroying this document.

For as long as I am able to understand and communicate my own health care decisions, my own decisions control, and my agent shall act in consultation with me. My agent's authority to decide for me is intended to be used whenever I am unable to give informed consent myself — including while I am sedated, anesthetized, or otherwise unable to communicate during and after a medical procedure — and at any other time I ask my agent to act for me.

ARTICLE 6. AUTHORITY OF MY AGENT

I grant my agent general authority with respect to health care as described in RCW 11.125.400. Without limiting that general grant, I specifically authorize my agent to:

- (a) give, withhold, or withdraw informed consent to any health care, treatment, service, medication, test, or procedure, including without limitation cardiac catheterization and coronary angiography, angioplasty and stent placement, the administration of contrast dye, sedation and anesthesia, blood products and transfusion, and any additional diagnostic or corrective procedure that my physicians recommend during, or arising out of, such a procedure, including the treatment of any complication;
- (b) consent to or refuse my admission to, transfer between, or discharge from any hospital, clinic, surgical center, rehabilitation facility, skilled nursing facility, hospice, or other health care facility, and to arrange my care after discharge;
- (c) select, employ, and discharge physicians, surgeons, nurses, therapists, and other health care providers, and to authorize referrals and second opinions;
- (d) act as my personal representative for all purposes of the Health Insurance Portability and Accountability Act of 1996 (HIPAA), 42 U.S.C. Sec. 1320d and its implementing regulations, including 45 C.F.R. Sec. 164.502(g), and to request, receive, review, obtain copies of, and consent to the disclosure of any of my individually identifiable health information, medical records, imaging, laboratory results, billing records, and insurance information;
- (e) speak with, question, and receive full reports from any of my physicians, nurses, and other providers; to be informed of my diagnosis, prognosis, and treatment options and their risks and alternatives; and to be physically present with me to the fullest extent the facility permits, including in pre-operative, procedural, recovery, and intensive care areas;
- (f) sign on my behalf any consent, informed-consent form, HIPAA authorization, release, waiver, admission or discharge paperwork, financial-responsibility form, or other document reasonably necessary to carry out this authority, including a document containing a release from liability;
- (g) consent to and direct measures for my comfort, including medication for the relief of pain, even if such measures may hasten my death, and to refuse treatment my agent reasonably believes I would refuse;
- (h) apply for and pursue insurance, Medicare, Medicaid, and other health benefits on my behalf, and to file appeals and grievances relating to my care.

In exercising this authority my agent shall act in good faith, in accordance with any wishes I have expressed to my agent, and otherwise in my best interest, after consultation with my physicians. My agent is not liable to me or my

Principal's initials: _____

estate for decisions made in good faith on my behalf.

ARTICLE 7. LIFE-SUSTAINING TREATMENT

Optional. Place your initials on **one** line below if you wish to address this subject. If you initial neither line, the final paragraph of this Article applies.

- **My agent MAY decide to withhold or withdraw life-sustaining treatment** for me, including cardiopulmonary resuscitation, mechanical ventilation, dialysis, and artificially administered nutrition and hydration, if my agent determines that this is consistent with my wishes and my best interest after consulting my physicians. I expressly grant my agent that authority.
- **My agent MAY NOT decide to withhold or withdraw life-sustaining treatment** for me. My agent’s authority does not extend to that decision.

If I have initialed neither line above, my agent shall make decisions about life-sustaining treatment based on my wishes as my agent understands them and, if my wishes are unknown, on my best interest, in consultation with my attending physician. Any health care directive (living will), POLST form, or mental health advance directive I have signed controls over this Article to the extent it conflicts with it.

ARTICLE 8. LIMITATIONS OR SPECIAL INSTRUCTIONS

My agent’s authority is subject to any limitations or special instructions I write below. *(Optional — if this space is blank, there are no limitations other than those stated elsewhere in this document or imposed by law.)*

Limitations or special instructions

ARTICLE 9. PRIOR DOCUMENTS; OTHER DIRECTIVES

This document revokes any prior durable power of attorney for health care I have signed only to the extent that the prior document is inconsistent with this one. Any health care directive (living will), POLST form, mental health advance directive, or organ-donation designation I have signed remains in effect, and my agent shall honor it.

ARTICLE 10. RELIANCE BY THIRD PERSONS; COPIES

Any physician, nurse, hospital, clinic, laboratory, pharmacy, insurer, or other person or entity may rely on this document and on my agent’s authority, and is released from liability for acting in good faith reliance on it, as provided in chapter 11.125 RCW. A photocopy, facsimile, scanned image, or other electronic copy of this signed document has the same force and effect as the signed original. This document is governed by the law of the State of Washington.

ARTICLE 11. NOMINATION OF GUARDIAN

If a court ever considers appointing a guardian or conservator of my person, I nominate the agent then serving under this document to be appointed, and I ask the court to give this nomination the effect provided by law.

ARTICLE 12. SIGNATURE OF PRINCIPAL

I have read this document, I understand its contents, and I sign it voluntarily as my own free act. **Do not sign until you are in front of a notary public or two qualified witnesses — see Article 13.**

Signed at _____, Washington, on _____, 20 ____.

Signature of Principal

Date signed

Print name of Principal

ARTICLE 13. EXECUTION — NOTARY OR TWO WITNESSES

COMPLETE OPTION A OR OPTION B — NOT BOTH.

Under RCW 11.125.050 this document must be signed and dated by the Principal, and the Principal's signature must either (A) be acknowledged before a notary public, or (B) be attested by two or more competent witnesses who sign in the Principal's presence and at the Principal's direction or request. **Option A (notary) is the stronger choice** — a notarized signature is presumed genuine and most hospitals accept it without question. Use Option B only if no notary is available.

Warning about witnesses: a witness may not be related to the Principal or to the agent by blood, marriage, or state registered domestic partnership, and may not be the Principal's home care provider or a care provider at an adult family home or long-term care facility where the Principal lives. Family members therefore cannot serve as witnesses. A neighbor, family friend, coworker, or church member can.

OPTION A — NOTARIAL ACKNOWLEDGMENT

STATE OF WASHINGTON

COUNTY OF _____

This record was acknowledged before me on _____ (date) by _____ (name of Principal), who signed it as a voluntary act for the purposes stated in it.

Signature of Notary Public

Print name of Notary Public

Title: Notary Public in and for the State of Washington

My commission expires: _____

Affix notary
seal or stamp
here

OPTION B — ATTESTATION BY TWO WITNESSES

Each of us signs below in the presence of the Principal and at the Principal's direction or request. Each of us declares under penalty of perjury under the laws of the State of Washington that: the Principal signed this document in my presence and appeared to me to be of sound mind and acting freely, without duress, fraud, or undue influence; I am at least eighteen years of age and competent; I am not the agent or alternate agent named in this document; I am not related to the Principal or to the agent by blood, marriage, or state registered domestic partnership; and I am not the Principal's home care provider, nor a care provider at an adult family home or long-term care facility in which the Principal resides.

Principal's initials: _____

First witness_____
Signature of witness_____
Date_____
Print name of witness_____
Address (city and state)**Second witness**_____
Signature of witness_____
Date_____
Print name of witness_____
Address (city and state)**ARTICLE 14. ACCEPTANCE BY AGENT**

Optional but recommended — it helps hospital staff confirm who the agent is. I accept appointment as agent under this document. I understand that I must act in good faith, within the authority granted, in accordance with the Principal's reasonable expectations and known wishes and otherwise in the Principal's best interest, and that I must keep the Principal informed to the extent the Principal is able to participate.

Signature of Agent_____
Date_____
Print name of Agent_____
Telephone

Principal's initials: _____

HIPAA AUTHORIZATION FOR RELEASE OF HEALTH INFORMATION

Accompanies and supplements the Durable Power of Attorney for Health Care

This is a stand-alone authorization under the Health Insurance Portability and Accountability Act of 1996 (HIPAA), 45 C.F.R. Parts 160 and 164. Hospital staff sometimes ask for one even when a power of attorney is presented; providing it avoids delay.

Print full legal name of Principal (patient)

Date of birth

I authorize any physician, health care professional, hospital, clinic, surgical center, laboratory, imaging facility, pharmacy, insurer, health plan, or other covered entity that has provided health care to me, or that has paid for or is billing for my health care, to disclose my protected health information to the person or persons named below.

Name of person authorized to receive my health information

Relationship

Telephone

Second person authorized (optional) and relationship

Information covered. This authorization applies to all of my protected health information, including my complete medical record, physician and nursing notes, history and physical, operative and procedure reports, imaging and diagnostic studies and their interpretations, laboratory results, medication and allergy lists, discharge summaries, billing and payment records, and information about my care and prognosis given verbally, in person, or by telephone. I intend this authorization to include information relating to cardiovascular disease and any procedure to diagnose or treat it.

Purpose. So that the person named above may be informed about, discuss, coordinate, and make decisions about my health care.

Duration. This authorization takes effect on the date I sign it and remains in effect until I revoke it in writing. It does not expire upon my disability or incapacity, and it survives my death to the extent permitted by law.

My rights. I understand that I may revoke this authorization at any time by written notice to the disclosing provider, except to the extent the provider has already acted in reliance on it; that treatment, payment, enrollment, and eligibility for benefits may not be conditioned on my signing it; and that information disclosed under this authorization may no longer be protected by federal privacy rules once it is received by the person named above.

Signature of Principal (patient)

Date

Print name of Principal

If this page is signed at the same time and before the same notary or witnesses as the Durable Power of Attorney for Health Care, no separate notarization of this page is required.

Principal's initials: _____

HOW TO COMPLETE AND USE THIS DOCUMENT

Instruction sheet — NOT part of the legal document. Do not sign this page.

Step by step

1. **Print the legal document** (every page except this one), single-sided if you can — hospital records staff scan these.
2. **Fill in Articles 1 and 2**, and Article 3 if you want a backup agent. The patient (Principal) is your dad; the agent is your sister. Blue or black ink, and print names exactly as they appear on his photo ID and insurance card.
3. **Article 7 is optional.** Your dad initials one line only if he wants to address life-sustaining treatment. If he leaves both blank the document still works — his agent then decides based on his wishes and best interest.
4. **Do not sign anything until the notary or both witnesses are watching.** Signing early is the most common reason these get rejected.
5. **Article 12:** your dad fills in the city, then signs and dates. **Article 13:** complete Option A or Option B — never both. **Article 14:** your sister signs to accept the role.
6. **HIPAA page:** your dad fills it in and signs it, naming your sister as the person authorized to receive his health information.
7. **Make three copies** — hospital medical records, your sister, your dad's file. Give the hospital a copy and keep the signed original safe. Photograph every page with her phone as a backup.

Where to get it notarized on short notice

Notaries are usually easy to find same-day: a bank or credit union (often free for members — call ahead and ask whether a notary is on duty), a UPS Store or other shipping and mailbox store (walk-in, roughly \$15 per signature), a public library or city clerk's office. **Many hospitals also have a notary on staff** — call patient relations, social work, case management, or admissions and ask; if they do, your dad can sign at the hospital before the procedure. Everyone signing must bring unexpired photo ID.

If no notary is reachable in time, use Option B, and mind the disqualification: nobody related to your dad or to your sister by blood, marriage, or registered domestic partnership may witness. Two unrelated adults — neighbors, coworkers, family friends, church members, or two hospital employees who are not his care providers — can sign.

Worth knowing

Washington law already gives your sister standing. Even with no document at all, RCW 7.70.065 sets the order of people who may give informed consent for a patient who cannot consent: a court-appointed guardian, then an agent under a durable power of attorney, then the spouse or state registered domestic partner, then adult children, then parents, then adult brothers and sisters. So if this document is not finished in time, the procedure will not be blocked. But the adult children have to agree among themselves, which can be slow, and that route does not by itself unlock medical records — the gaps this document and the HIPAA page close.

Call the hospital first. Ask the pre-procedure or admissions nurse whether they want the form in advance and where to send it, and whether they have their own advance directive packet they prefer. Most hospitals will accept this one, but a few minutes on the phone the day before prevents an argument on the morning of the procedure.

Capacity matters. Your dad must understand what he is signing at the moment he signs it, so get this done before he is medicated or sedated. If he cannot understand it, this document cannot be used and the RCW 7.70.065 order above governs instead.

Scope. This is a health care power of attorney only. It grants no authority over money, banking, property, or taxes, apart from the health-benefit claims in Article 6(h). A financial power of attorney is a separate document.

Not legal advice. This document was prepared to track the requirements of chapter 11.125 RCW so that it can be signed quickly ahead of an upcoming procedure. It is not a substitute for advice from a Washington attorney, and no attorney-client relationship exists. For longer-term planning — or if the situation involves family disagreement, existing estate planning documents, a guardianship, real property, or Medicaid — have a Washington estate-planning or elder-law attorney review it. The Washington State Medical Association publishes a free advance directive, and free plain-language forms and instructions are available at WashingtonLawHelp.org.